APPLICATION FOR
SPECIAL EXCEPTION USE PERMIT
LINCOLN TOWNSHIP

PO BOX 239
LAKE GEORGE, MI 48633

Fee: $125 plus Attorney Fees if done a regularly Scheduled Planning Commission Meeting $425 plus Attorney Fees if Special Meeting is Requested

Name: _____

Address: _____

Phone Number (Home): _____ (Work): _____

Signature: _____ Date: _____

Is this Property Owned by Application Yes _____ No _____ If no please include a signed letter from the owner authorizing you to act on their behalf in this matter.

What is the proposed use of the Property_____?

_____

_____

Location of property_____

Zoning classification of property_____

Adjoining land zoning classification_____

Property #_____ is rezoning warranted Yes____ No _____

Lot size_____

Size of proposed building or addition (if any) _____

Use of existing building (if any) and property_____

_____

<u>All areas of application must be completed</u>

If the proposed use does not require site plan review an abbreviated site plan is still necessary for the Special Use or Exception Permit review purposes. This abbreviated site plan must show the following information:

a. Property boundary lines
b. Location of existing buildings and structures
c. Location of any proposed buildings or structures
d. Location of abutting streets and driveways
e. Existing zoning on the subject property and the adjacent properties

LOT DIAGRAM

1. Draw lot lines (show dimensions in feet)
2. Label streets
3. Draw existing structures (if any)
4. Draw proposed construction (if any)
5. Show dimensions of all buildings (if any)
6. Show distance from all sides of buildings to property lines in feet.
7. Contractor/owner will stake 2 adjacent lot lines for the first inspection.

Special Exemption Use Permit Procedure

The Lincoln Township Zoning Ordinance identifies certain land uses, which because of the nature or method of operation, require specific safeguards or design constraints to be in place prior to their development. These land uses, called "special or exception uses ", are allowed provided specific standards and guidelines are met. These standards and guidelines are established as a means of eliminating or reducing any of the anticipated negative impacts a "special or exception use" may have on its surrounding neighbors.

1. The following steps shall be taken by the applicant, zoning officials and review body when considering a proposed special exception use:

   a. All applications for special exception use permits shall be filed with the Lincoln Township Zoning Administrator and shall include the required site plan, fee and any other pertinent information upon which the applicant intends to rely for a Special Exception Use Permit. (Submit seven (7) copies of each.) Applications for dwellings over 3500 sq. ft. or commercial or industrial or those for multiple dwellings must be from a licensed architect.
   b. The Zoning Administrator shall, after preliminary review, forward the complete application to the Planning Commission for review of the special exception use. The Township Planning Commission shall review the site plan according to the criteria in Section 1703 of this article. In addition, the Planning Commission shall review the proposed special exception use according to the criteria set forth below.

2. In the case that a discretionary decision must be made, the Planning Commission shall give public notice in a newspaper of general circulation of official receipt of an application for a special exception use permit, for which a scheduled public hearing will be held. This notice shall:

   a. Describe the nature of the special exception use permit.
   b. Indicate the property in question.
   c. State the time and place where the special exception use request will be considered.
   d. Indicate when and where written comments will be received concerning the request.

3. The public hearing notice shall also be mailed or delivered to property owners and occupants within three hundred (300) feet of the property in question. The public hearing notices shall be sent at least fifteen (15) days prior to the date of the public hearing. An affidavit of mailing or delivery of notice shall be maintained by the Township Clerk.

   a. After the hearing, the Planning Commission shall:

      i. Approve special exception use permit application and final site plan. The Zoning Administrator shall then be directed to issue the special exception use permit. Or
      ii. Approve special exception permit application and final plan subject to a condition, which are imposed in order to insure the special land use, complies with standards stated in this Ordinance. The Zoning Administrator shall be directed to issue the special exception use permit. -Or-

iii. Disapprove application and final site plan.

iv. All decisions shall be accompanied with a concluding statement citing the reasons for decision and any conditions imposed.

4. Criteria for Approval

a. In addition to compliance with the specific district regulations and general regulations as outlined in this Ordinance, the following criteria shall be met in order for the Planning Commission approval of a special exception use:

i. The special exception use will comply with the requirements, intent, and purposes of this Ordinance.

ii. The special exception use will comply with the intent and purposes of the district in which it is located.

iii. The special exception use will comply with the standards and purposes set forth in the Township Master Plan.

iv. The special exception use will be compatible with adjacent uses of land, the natural environment, and the capacities of public services and facilities affected by such special exception use.

v. The special exception use will be consistent with the health, safety and welfare of the Township.

SITE PLAN REVIEW

1. Review Procedure

   a. All proper applications, fees, and site plans, required as stated within this Ordinance, shall be submitted by the petitioner (property owner or designated agent) to the office of Zoning Administrator (three (3) copies).
   b. Upon determining that the proposed use complies with the ordinance, and all other pertinent codes and ordinances of the Township, the Zoning Administrator shall cause the request for approval to be put on the agenda of the next regularly
   c. Scheduled Planning Commission meeting, provided that such meeting is scheduled to be held at least forty-eight (48) hours after the applicant has submitted the site plan to the Zoning Administrator's office. If the regularly scheduled Planning Commission meeting is to be held within forty-eight (48) hours of such submittal by the applicant, the Zoning Administrator shall schedule the applicant's hearing for the next following regularly scheduled Planning Commission meeting.
   d. The Planning Commission shall have the responsibility to approve, approve with specified changes and/or conditions, or disapprove the applicant's request, using the criteria for site plan review included in this Ordinance as a basis for its decision. Any conditions or changes stipulated by the Planning Commission shall be recorded in the minutes of the meeting and a copy of said conditions or changes given to the applicant and Zoning Administrator. An approved site plan request shall contain the signatures of the Chairman of the Planning Commission, Zoning Administrator and the developer or agent.
   e. Of the three (3) copies of the site plan submitted by the applicant, one (1) copy shall be kept on file by the Planning Commission, one (1) copy retained in the Zoning Administrator's office and one (1) copy retained by the applicant.

2. Criteria for Site Plan Approval

   a. The Planning Commission shall approve a site plan if it determines that:
   b. The proposed project complies with the requirements of this ordinance.
   c. The proposed project promotes the intent and purposes of this ordinance.
   d. The proposed project is compatible with adjacent land uses and the natural environment.
   e. The proposed project has no adverse impact on public services and amenities including transportation and public utilities.
   f. The proposed project complies with all other applicable ordinances and state and federal statutes.

Township of Lincoln - Clare County
PO Box 239
Lake George, MI 48633

TO BE FILLED OUT BY THE
LINCOLN TOWNSHIP PLANNING COMMISSION

Date Filed_____ Review Date_____

Public Hearing Date_____ Date of Notice Mailing_____

The Lincoln Township Planning Commission having reviewed the Special Exemption Use Permit does hear by:

APPROVED _____

Approved with the following conditions:

_____

_____

_____

_____

_____

_____

_____

DENIED_____

Denied for the following reasons:

_____

_____

_____

Date _____

_____
Signature, Planning Commission Chairperson

_____
Signature, Zoning Administrator

_____
Signature, Applicant or Applicant Representative